

HOUSE BILL 2001

By Powell

AN ACT to amend Tennessee Code Annotated, Title 39,  
Chapter 13, relative to the transmission of  
infectious diseases.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-13-109(c), is amended by adding  
the following as a new subdivision:

(4) It is an affirmative defense to prosecution under this section, which must be  
proven by a preponderance of the evidence, that the person infected with HIV was in  
compliance with a treatment regime prescribed by the person's healthcare provider to  
medically suppress the risk of HIV transmission.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.